

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

August 27, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Harris v. Orange County Transportation Authority 2022-01284718	Off calendar.
2	Reyes v. Bioseal 2024-01395971	<u>Plaintiff's Motion for Final Approval of Class Action Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$550,000 class action settlement. The court grants the motion as follows:

		\$5,000.00 for enhancement award to plaintiff; \$183,333.33.00 for attorneys' fees; \$22,635.39 for litigation costs (Blakely Decl. (ROA 90) Ex. D); and \$7,450.00 for settlement administration costs. Plaintiff is ordered to submit <u>by September 3, 2026</u> a revised proposed order and judgment (including the above amounts) that includes in paragraph 5 the names of the six individuals who opted-out of the settlement. The final accounting hearing is scheduled for <u>October 7, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice and to file a proof of service.
3	Sandoval v. W Brothers Landscape, Inc. 2024-01426168	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$470,000 class action and PAGA settlement. The court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff; \$141,000.00 for attorneys' fees; \$19,003.80 for litigation costs; \$4,990.00 for settlement administration costs; and \$35,000.00 total PAGA penalties (\$22,750.00 to the LWDA). The final accounting hearing is scheduled for <u>March 18, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
4	South Coast Shipyard, Inc. v. NPB Marina LLC, et al. 2017-00910966	<u>Plaintiffs' Request for Entry of Proposed Judgment</u> Following a jury verdict largely in their favor on their negligence and nuisance claims, plaintiffs South Coast Shipyard, Inc. and Peter Stewart submitted a proposed judgment addressing the damages awarded by the jury and seeking entry of an injunction by the court. ROA 1948. Plaintiffs filed a brief in support of their

proposed judgment. ROA 1937. Defendants NPB Marina LLC, NPBeach Marina LLC, Wieland-Davco Corporation and Blue Iron, Inc. (together, the "Wieland Defendants") filed objections to plaintiffs' proposed judgment, which defendants Vue Newport Owners Association, Peninsula Village, LLC and Vue Investor Owner, LLC (together, the "Vue Defendants") joined. ROA 1964, 1970. The Vue Defendants filed oppositions to plaintiffs' proposed judgment. ROA 1966, 1968, 1972. Plaintiffs filed replies in support of their proposed judgment. ROA 1988, 1990, 1992, 1994. The Wieland Defendants filed an objection to plaintiffs' 74-page reply. ROA 1996. By order dated August 24, 2026 (ROA 2009), the court granted plaintiffs' ex parte application seeking an order authorizing the filing of the 74-page reply and an order authorizing plaintiffs' late filing of their reply to the Vue Newport Owners Association's opposition to plaintiffs' proposed judgment, insofar as the court will exercise its discretion to consider these documents. The court denied plaintiffs' ex parte application in all other respects, and granted defendants leave to file surreplies by August 25, 2026. The Wieland Defendants filed a surreply on August 25, 2026. ROA 2013.

Relevant background

After a multi-week trial, the jury returned a verdict: (i) finding defendants NPB Marina LLC, NPBeach Marina LLC and Wieland-Davco Corporation liable on plaintiffs' negligence claim; (ii) finding defendants Blue Iron, Inc., Vue Newport Owners Association, Peninsula Village, LLC and Vue Investor Owner LLC not liable on plaintiffs' negligence claim; (iii) finding all defendants liable on plaintiffs' nuisance claim; and (iv) awarding \$7,000,000 in costs of repair damages and \$1,800,000 in lost profits. ROA 1935. The jury apportioned responsibility for plaintiffs' harm as follows:

NBP Marina LLC	10%
NPBeach Marina LLC	10%
Wieland-Davco Corporation	75%
Blue Iron, Inc.	0%
Vue Newport Owners Association	1%
Peninsula Village, LLC	2%
Vue Investor Owner LLC	2%
South Coast Shipyard, Inc.	0%
Peter Stewart	0%
Earth Support Systems, Inc.	0%
Clauss Construction	0%

The court has read and considered all of the papers filed in support of and in opposition to plaintiffs' proposed judgment. The court

also presided over the trial, as well as numerous pretrial hearings and other proceedings. Based on the court's consideration of the papers filed in support of and in opposition to plaintiffs' proposed judgment, and based on the court's participation in and knowledge of the pretrial proceedings and the trial, including the evidence introduced at the trial, the court rules as follows:

Injunction

A permanent injunction is an equitable remedy, and the grant or denial of a permanent injunction rests within the trial court's discretion. *Horsford v. Board of Trustees of Cal. State Univ.* (2005) 132 Cal.App.4th 359, 390. "[A]n injunction must not be uncertain or ambiguous and the defendant must be able to determine from the order what he may and may not do." *City of Redlands v. County of San Bernardino* (2002) 96 Cal.App.4th 398, 415. "[A]n injunction [cannot] be 'so vague that [persons] of common intelligence must necessarily guess at its meaning and differ as to its application.'" *Long Beach Memorial Med. Ctr. v. Kaiser Foundation Health Plan, Inc.* (2021) 71 Cal.App.5th 323, 343; see also *People ex rel. Dep't of Transp. v. Maldonado* (2001) 86 Cal.App.4th 1225, 1234 ("An injunction must be sufficiently definite to provide a standard of conduct for those whose activities are to be proscribed, as well as a standard for the court to use in ascertaining an alleged violation of the injunction").

Plaintiffs' proposed judgment contains 4 pages of dense, vague and, with respect to some terms, disputed (e.g., "Tidal Fluctuation Corridor," "Wingwall," "Wingwall Coping") defined terms. Some of the defined terms (e.g., "Concrete Structure," "Declaration," "Marina Property") require reference to other documents. One of the defined terms ("Association Property," ROA 1948 at 3:5-6) is not defined, and another defined term ("Association Seawall," ROA 1948 at 3:7-9) appears to be missing words or, if it is not, is unintelligible. The defined terms alone render plaintiffs' proposed judgment problematic because many of the numerous orders that plaintiffs ask the court to impose on the Vue Defendants refer to and/or rely on the defined terms.

The defined terms, however, are only one of the reasons the court declines to issue plaintiffs' proposed judgment. Plaintiffs' proposed injunction would task the Vue Defendants with, among other things:

- (i) distributing a notice to "all owners of condominium units at the Marina Property and all tenants of condominium units at the Marina Property" that states, *inter alia*, that "all persons in the vicinity of the Concrete Structure, in the subterranean garage next to it, and in the building next to it are subject to serious injury or death" if the "Concrete Structure" fails;
- (ii) "engag[ing] and pay[ing] licensed engineers (and such other persons and entities that they decide to engage to assist them) . . . to design, prepare plans, drawings and specifications and such other documents that the City [of

		Newport Beach] may require to apply for permits that that have as their objective the construction of a structure, a method, a technique, a means or any combination of them that prevents water from the Tidal Fluctuation Corridor from entering into the Shipyard Property”; (iii) “pay[ing] for and construct[ing] and complet[ing] the structure, method, technique, or means that is approved by the City to prevent water from the Tidal Fluctuation Corridor from entering into the Shipyard Property”; (iv) “engag[ing] and pay[ing] licensed engineers (and such other persons and entities that they decide to engage to assist them) . . . to design, prepare plans, drawings and specifications and such other documents that the City may require to apply for permits that that have as their objective to repair the broken Wingwall”; (v) “pay[ing] for and construct[ing] and complet[ing] the structure, method, technique, or means that is approved by the City to . . . repair the broken Wingwall”; (vi) “engag[ing] and pay[ing] licensed engineers (and such other persons and entities that they decide to engage to assist them) . . . to design, prepare plans, drawings and specifications and such other documents that the City may require to obtain approval from the City for the way in which the Concrete Structure was constructed”; (vii) “pay[ing] for and construct[ing] and complet[ing] the structure, method, technique, or means that is required by the City to repair or replace the Concrete Structure”; (viii) “engag[ing] and pay[ing] licensed engineers (and such other persons and entities that they decide to engage to assist them) . . . to design, prepare plans, drawings and specifications and such other documents that the City may require to apply for the permits that have as their objective the construction of permanent shoring structure in the area of the end of the Tidal Fluctuation Corridor”; and (ix) “pay[ing] for and construct[ing] and complet[ing] the permanent shoring structure in the area of the end of the Tidal Fluctuation Corridor.” Plaintiffs’ proposed injunction would also: (i) prohibit the Vue Defendants from “[h]indering, altering, delaying, impeding, preventing, obstructing, or in any other act or conduct of interfering with either of the plaintiffs’ actions of (1) submitting reports, plans and other documents and information to the City of Newport Beach, California, and (2) applying for permits from the City of Newport Beach, California determined by either of the plaintiff to be appropriate or necessary to (a)
--	--	--

		effectuate repairs to the Shipyard Property and (b) effectuate the work [described elsewhere in the proposed judgment]”; (ii) prohibit the Vue Defendants from “[h]inder[ing], altering, delaying, impeding, preventing, obstructing, or in any other act or conduct of interfering with either of the plaintiffs’ actions and effectuation of repairing, bettering, treating, strengthening, fixing, modifying, and otherwise improving: (1) the soils at and as part of the Shipyard Property; (2) the soils at the property line that separates the Shipyard Property from the Marina Property; (3) the (a) soils located on the Marina Property between the property line and subterranean garage wall on the Marina Property, and (b) soils adjacent to the community owned Wingwall and Wingwall Coping”; (iii) prohibit the Vue Defendants from “[h]inder[ing], altering, delaying, impeding, preventing, obstructing, or in any other act or conduct of interfering with the plaintiffs’ actions and effectuation of repairing, bettering, treating, strengthening, fixing, modifying, and otherwise improving: (1) the voids above the soils at and as part of the Shipyard Property; (2) the voids above the soils at and above the property line that separates the Shipyard Property from the Marina Property; and (3) the voids above the (a) soils located on the Marina Property between the property line and subterranean garage wall on the Marina Property, and (b) soils adjacent to the community owned Wingwall and Wingwall Coping”; and (iv) order the Vue Defendants to pay plaintiffs “the costs and expenses actually incurred by [plaintiffs] in effectuating the repairs to the Shipyard Property that exceed \$8,800,000.00 upon proof of such costs and expenses to the satisfaction of the of the Court.” The proposed injunction would also order defendants NBP Marina LLC and NPBeach Marina LLC to reimburse the Vue Defendants for “[a]ll costs and expenses” the Vue Defendants incur complying with the injunction “pursuant to the indemnification provisions of paragraph 10.1.6 of the Agreement of Purchase and Sale and Joint Escrow Instructions which was introduced at trial as Exhibit 434 upon proof of such costs and expenses to the satisfaction of the Court.” Applying the legal principles set forth above, the court declines to enter plaintiffs’ proposed judgment. Plaintiffs’ proposed multi-part mandatory and prohibitory injunction is ambiguous and overbroad, in some respects exceeds the court’s authority, in other respects is not supported by the evidence introduced at trial, and is not sufficiently definite that the Vue Defendants could reasonably understand its requirements and the court could evaluate alleged violations. Moreover, imposing a vague, sweeping injunction of unknown cost and duration on three parties collectively found 5%
--	--	---

responsible for plaintiffs' harm would be inequitable and is not warranted by the evidence introduced at trial.

Joint and several liability

Plaintiffs' proposed judgment states that defendants NPB Marina LLC, NPBeach Marina LLC, Wieland-Davco Corporation, Blue Iron, Inc., Vue Newport Owners Association, Peninsula Village, LLC and Vue Investor Owner LLC are jointly and severally liable for the damages awarded by the jury. Defendants argue the damages should be apportioned consistent with the jury's determination of responsibility for plaintiffs' harm.

As stated above, the jury awarded plaintiffs \$7,000,000 in costs of repair damages and \$1,800,000 in lost profits. These are economic damages. See Civ. Code § 1431.2(b). Civil Code section 1431.2(a) therefore does not apply. Civ. Proc. Code §§ 1431, 1431.2.

Liability for economic damages is joint and several. *Shuler v. Capital Agricultural Prop. Servs., Inc.* (2020) 49 Cal.App.5th 62, 67 ("For economic damages, California has adopted the 'joint and several liability' doctrine"). A defendant who pays more than its pro rata share of a judgment, however, may have a right of contribution pursuant to Civil Procedure Code section 875.

The Vue Defendants argue they should not be jointly and severally liable for plaintiffs' damages because plaintiffs' injury is divisible. Under the joint and several liability doctrine, independent tortfeasors whose acts combine to produce an indivisible injury each bear responsibility for the entire harm. The Vue Defendants have not persuasively demonstrated that the evidence introduced at trial showed plaintiffs' injury is divisible.

Blue Iron, Inc. argues that because the jury found it not liable for negligence and found it 0% responsible for plaintiffs' harm, Blue Iron is not jointly and severally liable for the economic damages. In addition the findings Blue Iron cites, the jury also found Blue Iron liable on plaintiffs' nuisance claim, including finding that Blue Iron's conduct "in creating or permitting a condition to exist on the marina property [was] a substantial factor in causing harm to Plaintiffs." ROA 1935 at 6 (Question 9). A party who is a proximate cause of the damages suffered by a plaintiff may be jointly and severally liable for all economic damages. *Kitzig v. Nordquist* (2000) 81 Cal.App.4th 1384, 1401. "[T]his form of proximate cause is not necessarily equivalent to fault analysis under Proposition 51 [Civil Code § 1431.2]." *Id.*

Setoffs

Plaintiffs settled pretrial with defendant Earth Support Systems, Inc. for \$1,675,209.59 and defendant Clauss Construction for \$240,000.00. The court deemed both of these settlements to have been made in good faith. ROA 479, 1786. Plaintiffs' proposed judgment does not include setoffs for these settlements.

The judgment should include setoffs for these settlements. Civ. Proc. Code § 877; *Greathouse v. Amcord, Inc.* (1995) 35

Cal.App.4th 831, 838 ("It is now well established that Code of Civil Procedure section 877 allows [the defendant] to set off settlement payments only for economic damages against the jury's verdict"); *McComber v. Wells* (1999) 72 Cal.App.4th 512, 516-17 ("a nonsettling defendant [is] entitled to a setoff from plaintiff's award of economic damages in the amount of settlements paid prior to trial by other defendants, despite the jury's finding that the settling defendants had no fault for plaintiff's injuries"). The court declines plaintiffs' request to declare section 877 unconstitutional. Plaintiffs' contention that they did not claim Earth Support Systems, Inc. and Clauss Construction were liable for the same torts as the other defendants is not supported by the pleadings or by the evidence introduced at trial regarding Earth Support Systems, Inc. and Clauss Construction. See Civ. Proc. Code § 877 (section 877 applies "[w]here a release, dismissal with or without prejudice, or a covenant not to sue or not to enforce judgment is given in good faith before verdict or judgment to one or more of a number of tortfeasors *claimed to be liable for the same tort*") (italics added).

The Wieland Defendants are ordered to lodge and serve by September 3, 2026 a proposed judgment consistent with the above ruling. The proposed judgment should, *inter alia*, (i) attach the verdict form as an exhibit; (ii) state the amount of damages awarded by the jury; (iii) state the amounts of settlement setoffs and the judgment amount after setoffs; (iv) state that defendants NPB Marina LLC, NPBeach Marina LLC, Wieland-Davco Corporation, Blue Iron, Inc., Vue Newport Owners Association, Peninsula Village, LLC and Vue Investor Owner, LLC are jointly and severally liable for the judgment amount after setoffs; and (v) state that entitlement to costs and any costs to be awarded shall be determined pursuant to timely-filed memoranda and motions. The court will hold the proposed judgment for 3 court days from the date of its lodging for any objections to the proposed judgment to be filed.

The Wieland Defendants to give notice.

Status Conference

In light of the court's concurrently-issued ruling regarding plaintiffs' proposed judgment, the status conference scheduled for August 27, 2026 is vacated.

Clerk to give notice.